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In The
Supreme Court of the United States
October Term, 1995

PETE WILSON, Governor of the State of California, et al.,
Petitioners,
v.

VOTING RIGHTS COALITION, et al.,
Respondents.

On Petition for Writ of Certiorari
to the United States Court of Appeals
for the Ninth Circuit

**BRIEF FOR RESPONDENTS IN OPPOSITION TO THE
PETITION FOR WRIT OF CERTIORARI**

MARK ROSENBAUM
KARL MANHEIM
ACLU FOUNDATION OF
SOUTHERN CALIFORNIA
1616 Beverly Boulevard
Los Angeles, California
90026
(213) 977-9500

STEVE SHAPIRO
ACLU
132 West 43rd Street
New York, New York
10036
(212) 944-9800

ROBERT RUBIN
Counsel of Record
THEODORE H. WANG
NANCY M. STUART
LAWYERS' COMMITTEE FOR
CIVIL RIGHTS OF THE SAN
FRANCISCO BAY AREA
301 Mission Street,
Suite 400
San Francisco, California
94105
(415) 543-9444

EVAN CAMINKER
UCLA SCHOOL OF LAW
405 Hilgard Avenue
Los Angeles, California
90024
(310) 206-7323

QUESTION PRESENTED

Whether U.S. Const., Art. I, § 4, which grants to Congress supervisory authority to make or alter state regulations of federal elections, authorizes the enactment of the National Voter Registration Act, which regulates states' procedures for voter registration for federal elections.

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STATEMENT OF THE CASE

A. Background

Congress enacted the National Voter Registration Act of 1993 ("NVRA") in order to establish uniform non-discriminatory voter registration "procedures that will increase the number of eligible citizens who register to vote in elections for Federal office." 42 U.S.C. § 1973gg(b)(1). Consistent with Congress' objectives, the overwhelming majority of states have now implemented this legislation with resounding success. Over five million new voters, of diverse backgrounds and political affiliations, have been added to the rolls.

Every judge from every court to consider the question has concluded without difficulty that the NVRA is constitutional. The State of California nevertheless persists in its challenge, despite over a century of Supreme Court precedent that squarely and consistently upholds Congress' broad authority to regulate federal elections. Article I, Section 4 of the Constitution, while recognizing that the States play a role in regulating federal elections, explicitly empowers Congress "at any time" to "make or alter such Regulations" as it deems appropriate. In an unbroken string of decisions, dating back to *Ex Parte Siebold*, 100 U.S. (10 Otto) 371, 392 (1879), this Court has held that Article I, Section 4 vests in Congress "paramount" authority to regulate federal elections.

Expressly pursuant to this settled authority, Congress enacted the NVRA. Declaring that "the purpose of our election process is not to test the fortitude and determination of the voter, but to discern the will of the majority," Congress established uniform nondiscriminatory registration standards. See S. Rep. No. 103-6, 103rd Cong., 1st Sess. 3 (1993). The NVRA provides that states requiring advance registration to vote in federal elections must provide for registration by (1) mail-in application, (2)

simultaneous application with driver's license or state ID card applications or renewals, and (3) application at disability and public assistance agencies. 42 U.S.C. §§ 1973gg-2 to 1973gg-5. The NVRA also describes procedures and standards governing the maintenance of voter registration rolls. 42 U.S.C. § 1973gg-6. Covered states were generally required to comply with the NVRA by January 1, 1995. 42 U.S.C. § 1973gg note.

Through the NVRA, Congress informs the states that if they choose to mandate advance registration for federal elections, which they are not required to do, they must implement specified registration procedures. The NVRA promotes the straightforward concept that voter registration is simply a matter of maintaining lists. Recognizing that states already maintain lists at motor vehicle and public assistance offices, the NVRA directs that those agencies assist in the voter registration process.

B. Procedural History

Respondents agree generally with Petitioners' statement of "The Proceedings Below" set forth at pages 7-11 of the Petition. Respondents note that, with the exception of South Carolina, those few other states listed by the Petitioners as having challenged the constitutionality of the NVRA have since abandoned their challenges.

C. Legislative History of the NVRA

The right to vote is a fundamental right under our Constitution. *Reynolds v. Sims*, 377 U.S. 533, 555 (1964). Through the NVRA, Congress sought to protect this fundamental right and to address the nationwide problem of discriminatory and unfair voter registration procedures for federal elections. 42 U.S.C. § 1973gg. The NVRA's legislative history and text both demonstrate a purpose to

make registration more accessible. Finding that voter registration is the single most important factor governing voter turnout and that contemporary registration rates are abysmally low, the Senate concluded:

[R]egistration procedures in the United States are not uniform and [] discriminatory and restrictive practices that deter potential voters are employed by some states. . . . The Voting Rights Act of 1965 made most of these restrictive practices illegal, yet discriminatory and unfair practices still exist and deprive some citizens of the right to vote. This legislation will provide uniform voter registration for Federal elections and thereby further the procedural reform intended by the Voting Rights Act.

S. Rep. No. 103-6, 103rd Cong., 1st Sess. 3 (1993).

The House echoed the Senate's conclusion. Determining that existing local voter registration laws were, in some instances, just as restrictive and discriminatory as the unlawful practices prohibited by the Voting Rights Act of 1965, the House Report stated that the NVRA was needed to reduce "obstacles to voting to the absolute minimum while maintaining the integrity of the electoral process." H.R. Rep. No. 103-9, 103rd Cong., 1st Sess. 3 (1993).

The findings and purposes set forth in the Act also recognize the significant public interest in increasing voter participation. Noting that discriminatory and unfair registration laws have a "direct and damaging effect on voter participation" in federal elections, the NVRA states that its objectives are to increase the rate of voter registration, enhance voter participation in federal elections, and "protect the integrity of the electoral process." 42 U.S.C. § 1973gg(a) & (b).

D. Statement of Facts

The overwhelming majority of states have recognized the laudatory purposes of the NVRA as well as Congress' power to legislate in this area and, accordingly, have faithfully implemented this legislation. But, as the district court noted: "The State of California and Governor Wilson [took] actions . . . tantamount to failure to comply with the NVRA." App. at 251.¹

Recognizing that preparation for implementing the NVRA would take considerable time, then-Acting Secretary of State Tony Miller sent the Governor a letter on January 31, 1994, warning that California was in danger of not meeting the January 1, 1995, deadline because it had yet to develop an implementation plan. *See* App. at 65-66. At about the same time, the California Department of Motor Vehicles ("DMV") cautioned the Governor that the state was running out of adequate preparation time for implementing the NVRA. *See* App. at 68-72.

Despite these advance warnings, the State failed to develop a comprehensive plan for implementing the NVRA. Nor did it seek any judicial resolution of the law's constitutionality. Instead, in August 1994, the Governor issued an Executive Order directing state officials not to comply with the NVRA except "to the extent federal funding is made available."² App. at 57-58. Meanwhile, in

¹ All appendix references are to the Appendix of Appellees Voting Rights Coalition, et al., filed with the Ninth Circuit on appeal from the district court's order granting a permanent injunction.

² To facilitate state compliance with the NVRA, Congress provided for federal agencies to partially reimburse states for the costs of implementing the Act at public assistance agencies. *See* H.R. Rep. No. 103-9, at 23-25; S. Rep. No. 103-6, at 39-41. The U.S. Department of Health and Human Services and the U.S.

an attempt to comply with the NVRA, the California legislature passed two related bills. App. at 74-75, 77-78. The bills would have established, *inter alia*, procedures for registering voters at DMV and other state agencies; procedures for removing individuals from voter rolls in a nondiscriminatory manner; and procedures for allowing voters who have moved within the same congressional district to vote without re-registering. The Governor vetoed both bills on September 30, 1994. See App. at 80-81.

Through his Veto Statements and Executive Order, the Governor made clear that the State would not comply with the NVRA unless it was fully federally funded. See App. at 57-58, 80-81. The Court of Appeals, however, concluded that the question of federal funding has no relevance to the NVRA's constitutionality. *Voting Rights Coalition v. Wilson*, 60 F.3d 1411, 1415 (9th Cir. 1995).

Moreover, the evidence soundly refutes California's estimates of the NVRA's costs and reveals that the State has failed to consider altogether the substantial savings that will result from the NVRA. Petitioners allege that the cost of implementation will be \$18 million and that "Respondents did not present any admissible evidence to contest this figure." Pet. at 7. That statement is false. Respondents introduced ample admissible evidence at the district court controverting the State's allegation, including a statement from Petitioners' then-Acting Secretary of State who estimated the total costs at \$5 million. App. at 105. Petitioners' cost projection, which has varied

Department of Agriculture have subsequently issued action transmittals that allow states to receive reimbursements for registering voters under federally funded (AFDC, Food Stamps, and Women, Infants and Children (WIC)) welfare programs. See App. at 60-61, 63.

over time by as much as \$32 million,³ is also grossly out of proportion to the actual experience of states already implementing the NVRA.⁴ In any event, Petitioners neither sought nor received any finding to support their inflated cost estimates.

In addition to overestimating the costs of the NVRA, Petitioners completely overlook the significant savings that its implementation will generate. As the experience of other states demonstrates, the procedures prescribed by the NVRA allow registration to be conducted much more cheaply than would otherwise be possible.⁵ The

³ See, e.g., Beverly Sheldrake, *Wilson Votes No*, Fresno Bee, Dec. 31, 1994, at B4 ("Wilson says he'd be glad to comply if, in the words of a press spokesman, 'they send us \$36 million.'"); *Don't Kill Off 'Motor Voter'*, Buffalo News, Feb. 1, 1995, at 2 (Wilson estimates NVRA will cost California \$50 million per year); *Clearing the Road for 'Motor Voter'*, L.A. Times, Jan. 8, 1995, at M4 (\$20 million); Margaret L. Usdansky, *States Stall on 'Motor Voter'*, USA Today, Dec. 22, 1994, at 4A (\$35.8 million).

⁴ Some states have implemented the NVRA without making any new appropriations, App. at 107-09 (Arizona, Maine, New Mexico, Ohio, Texas), while others have made relatively modest appropriations. For example, New York budgeted \$2.5 million for the first year of implementing the NVRA; while Florida appropriated \$1.1 million; Georgia, \$1.9 million; Massachusetts, \$6 million; and New Jersey, \$3.5 million. *Id.* Start-up costs, such as establishing new computer systems, constitute the most significant outlay, while operating costs are significantly less. App. at 111-12 (start-up and software formed Georgia's initial costs, operational costs in the future will be much less); App. at 149 (of Kentucky's \$650,000-\$700,000 of expenditures for the NVRA, \$575,000 was spent on reprogramming state's computer system); App. at 119-20 (costs of introduction form bulk, continuing expenses minimal). Consequently, the cost of complying with the NVRA should decrease over time.

⁵ There are several factors that contribute to these savings. First, the cost per transaction under the NVRA's registration

failure to consider these savings exposes the State's estimates to the same criticism levelled at the State of South Carolina by a district court. *Condon v. Reno*, Civ. Action No. 3:95-192-O (Nov. 20, 1995 D.S.C.; amended Dec. 12, 1995). While recognizing that "cost is not the touchstone in this constitutional confrontation," the court found that South Carolina's "failure even to attempt to examine possible offsetting savings – or even possible net savings overall – seriously undermines [the state's] claimed fiscal concerns about the NVRA." *Id.*, am. slip op. at 24. Petitioners in this case likewise disregard any savings that will derive from implementation of the NVRA.

E. Implementation of the NVRA

By enacting the NVRA, Congress sought to serve the public interest by eliminating barriers to voter registration and, at the same time, to protect the integrity of the federal electoral process. 42 U.S.C. § 1973gg(b); H.R. Rep.

procedures is much less than the traditional methods. In Washington State, where the cost per transaction used to be \$2.00-\$3.00, it is now \$0.41 per transaction. App. at 107, 124. In Minnesota, the cost per transaction is \$0.33; in Montana it is \$0.25; and in the District of Columbia it is \$0.18. App. at 107. Second, because voter registration under the NVRA occurs year-round and registers the vast majority of the eligible electorate, states will be able to reduce, if not eliminate, the part-time workers they typically must hire to handle last-minute pre-election registration. The CBO estimates that "local officials nationwide could save about \$10 million in a presidential election year and about \$7 million in non-presidential election years by reducing part-time hires." H.R. Rep. No. 103-9, at 28-29. Third, the U.S. Department of Health and Human Services and U.S. Department of Agriculture will reimburse State NVRA costs at the 50% federal match rate for AFDC, WIC, and Food Stamps applicants. App. at 60-61, 63.

No. 103-9, at 3. The people of California possess a profound interest in seeing these goals achieved. This State has one of the lowest voter registration rates in the country.⁶ Its record of minority voter participation is especially poor. *See* Cloward Decl. ¶ 10 (filed in support of Plaintiffs' Motion for Preliminary Injunction, Jan. 27, 1995). Despite having one of the most diverse populations in the nation, California's electorate remains relatively homogenous.⁷

In enacting the NVRA, Congress specifically recognized that the integrity and legitimacy of the democratic process depend on the broad inclusion of as many eligible persons as possible. As noted by Professor Richard Cloward, a voting expert at Columbia University, the NVRA clearly furthers this interest:

Eight states and the District of Columbia had their own motor voter programs in place at least 9 months before the 1992 federal election, well before the NVRA was passed. The positive impact on voter registration rates and voter turnout in those jurisdictions was enormous. Their aggregate registration increased at a rate five times higher than in other states, and their voter turnout increase was almost twice the increase in other states.

Cloward Decl. ¶ 8 (parentheticals omitted).

⁶ Voting and Registration in the Election of November 1992, Current Population Reports, U.S. Bureau of the Census, Series P-20; *Clearing the Road for 'Motor Voter'*, L. A. Times, Jan. 8, 1995, at M4; Cloward Decl. ¶ 10; App. at 137-38.

⁷ California is only 54% white, but over 80% of the voters at the November 8, 1994 general election were white. Ben Sherwood, *The Middle Class That 'Matters Most'*, San Francisco Chronicle, Dec. 30, 1994, at A23.

Most states are almost one year into their implementation of the NVRA and there can be little doubt of the Act's overwhelming success. Over five million citizens have been brought into the democratic process. B. Drummond Ayres, Jr., *Law to Ease Voter Registration Has Added 5 Million to the Rolls*, N.Y. Times, Sept. 3, 1995, § 1 at 1.⁸ While Petitioners protest that "[n]othing less is at stake than state autonomy," Pet. at 13, the more than forty states that have implemented the NVRA have done so with their sovereignty still intact. The most dramatic consequence of the NVRA has been its success in registering millions of new voters of varying backgrounds and political affiliations.⁹

SUMMARY OF ARGUMENT

The Court's discretionary review should not be invoked as this case fails to present "an important question" that "has not been . . . settled by this Court."

⁸ A more recent survey, based on data collected from state election officials, estimates that eight million new voters have been registered nationwide. Human SERVE, *The National Voter Registration Act, January through September 1995*. In the first four months since it was ordered to implement the Act, California has seen 300,000 of its citizens registered through the NVRA. *300,000 Motor Voters*, San Francisco Chronicle, Dec. 9, 1995, at A21. Other states have also experienced unprecedented increases in registration. Florida has averaged over 135,000 registrations per month; Texas 80,000 per month; Georgia 60,000 per month; North Carolina 40,000 per month; and Missouri 30,000 per month. Amicus Curiae Human SERVE's Brief in Support of Plaintiffs-Appellees (filed with Ninth Circuit) at 3-4.

⁹ See Frank Reeves & Peter J. Shelly, *Motor-Voter Law Helps GOP Most*, Pittsburgh Post-Gazette, Nov. 5, 1995, at A15; *The Motor Voter Act: Pleasant Surprises*, Phoenix Gazette, Sept. 9, 1995, at B8; William F. Zorzi, Jr., *Maryland GOP Benefiting from 'Motor Voter' Law*, Baltimore Sun, June 15, 1995, at 1B.

Supreme Court Rule 10(c). In fact, the decision below is supported by more than 100 years of precedent in this Court affirming beyond doubt Congress' authority over federal elections, including the registration of voters. Given this authority, there is simply no reasonable basis for questioning the NVRA's constitutionality.

Furthermore, no conflict exists among the courts of appeals on the issue presented. Every judge from every court to consider the question has concluded that the NVRA fits comfortably within Congress' constitutionally delegated powers. The Seventh and Ninth Circuits, as well as district courts in California, Illinois, Michigan, Kansas, South Carolina, Pennsylvania, and Virginia, are unanimous in concluding that Congress' power to enact the NVRA is authorized by the plain language of Article I, Section 4. As Chief Judge Posner stated in *Association of Community Organizations for Reform Now (ACORN) v. Edgar*, 56 F.3d 791, 794 (7th Cir. 1995), "the Constitution itself is clear enough to enable us to resolve the case."

Finally, because the Constitution gives Congress "the whip hand" with respect to the regulation of federal elections, *id.*, every court to consider the issue has easily dismissed any Tenth Amendment concerns. As Judge Sneed explained, in distinguishing the Tenth Amendment question raised in *New York v. United States*, 505 U.S. 144 (1992): "The flaw in the State of California's argument is that it ignores Article I, section 4, which, unlike the commerce power in Article I, section 8, empowers Congress to impose on the states precisely the burden at issue." *Voting Rights Coalition*, 60 F.3d at 1415. Therefore, the question whether Congress has imposed an "unfunded mandate" on the States is not of constitutional dimension. *Id.* Whatever the significance of this question as a political matter, it is addressed to the wrong branch of government and should not be decided by this Court.

ARGUMENT

A. IN ENACTING THE NVRA, CONGRESS ACTED SQUARELY WITHIN ITS POWER TO REGULATE FEDERAL ELECTIONS UNDER ARTICLE I, SECTION 4

1. Supreme Court precedent consistently upholds Congress' exercise of its supervisory power over federal elections under Article I, Section 4

The NVRA scarcely marks the first time that Congress has exercised its Article I, Section 4 authority to "make or alter" regulations concerning federal elections that impose burdens on the states. Nor did the rulings upholding the NVRA's constitutionality by the Ninth and Seventh Circuits, and the district courts in California, Illinois, Michigan, Kansas, South Carolina, Virginia, and Pennsylvania,¹⁰ break any new constitutional ground. Indeed, this Court has repeatedly recognized for over a century, and as recently as this past Term, that the oversight power created by Article I, Section 4 confers broad and superior authority upon Congress to regulate the States' conduct of federal elections. *See, e.g., U.S. Term Limits, Inc. v. Thornton*, 514 U.S. ___, 115 S.Ct. 1842,

¹⁰ *Wilson v. United States*, 878 F. Supp. 1324 (N.D.Cal. 1995); *Association of Community Organizations for Reform Now (ACORN) v. Edgar*, 880 F. Supp. 1215 (N.D.Ill. 1995); *Association of Community Organizations for Reform Now (ACORN) v. Miller*, Nos. 4:95-CV-45, 1:95-CV-184, 1:95-CV-386 (W.D. Mich. Dec. 13, 1995); *League of Women Voters of Kansas v. Graves*, Case No. 95-2350-KHV (D. Kan. Nov. 30, 1995); *Condon v. Reno*, Civ. Action No. 3:95-192-0 (D.S.C. Nov. 21, 1995; amd. Dec. 12, 1995); *Commonwealth of Virginia v. United States*, Civ. Action No. 3:95CV357 (RLW) (E.D.Va. Oct. 18, 1995); *Association of Community Organizations for Reform Now (ACORN) v. Ridge*, Civ. Action Nos. 94-7671, 95-382 (E.D.Penn. Mar. 30, 1995).

1868-69, 1873, 1898 (1995) (majority, concurring and dissenting opinions); *Oregon v. Mitchell*, 400 U.S. 112, 124 (1970) ("Congress has ultimate supervisory power over congressional elections"); *United States v. Classic*, 313 U.S. 299, 315 (1941) (states are authorized to legislate "to the extent that Congress has not restricted state action by the exercise of its powers to regulate elections under § 4"); *Ex Parte Siebold*, 100 U.S. (10 Otto) 371, 386 (1879) ("power of Congress over the subject is supervisory and paramount").

This question of Congress' authority in this area is simply not one about which there remains any serious dispute. As the *Siebold* Court stated in affirming Congress' "paramount" authority over the regulation of federal elections: "The views we have expressed seem to us to be founded on such plain and practical principles as hardly to need any labored argument in their support." *Id.* at 393.

Although Congress has tended to leave the conduct of federal elections to the states, it has on a number of occasions specifically exercised its supervisory powers pursuant to Article I, Section 4. In 1842, for example, Congress passed several laws providing for the election of Representatives by separate districts, fixing the time of elections, and directing that elections be by ballot. *Id.* at 384. While these laws imposed duties on the States, Congress made no provision for reimbursement of the costs imposed. Congress again resorted to its Article I, Section 4 powers with the Enforcement Act of 1870, prescribing extensive regulations for the election of Representatives, including provisions for safeguarding voter registrations. 16 Stat. 140, 16 Stat. 254; *Siebold*, 100 U.S. at 399 (upholding constitutionality); see also *Ex Parte Clarke*, 100 U.S. (10 Otto) 399 (1879) (following *Siebold*).

In upholding the 1870 Act, the *Siebold* Court observed that "we are bound to assume that Congress . . . has endeavored to guard as far as possible against unnecessary interference with State laws and regulations, with the duties of State officers, or with local prejudices." 100 U.S. at 393. Since *Siebold*, this Court has consistently affirmed the wide control available to Congress pursuant to its Article I, Section 4 powers. See, e.g., *United States v. Gradwell*, 243 U.S. 476, 485 (1917) (Congress may regulate federal elections by "positive and clear statutes"); *United States v. Mosley*, 238 U.S. 383 (1915) (upholding federal statute originally part of 1870 act upheld in *Siebold*). In *United States v. Classic*, 313 U.S. 299, 317 (1940), the Court held that Section 4 authorized Congress to regulate primary elections whenever "they are a step in the exercise by the people of their choice of representatives in Congress."

In *Smiley v. Holm*, 285 U.S. 355 (1932), this Court considered the relationship between a Minnesota statute establishing new congressional districts and a federal statute prescribing conditions for congressional districts. When Congress exercises its Section 4 power, the *Smiley* Court stated, it "may supplement [] state regulations or may substitute its own." *Id.* at 366-367. Therefore, the Court held that while both states and the federal government possess "broad authority" to regulate federal elections, any such regulation by Congress "overrul[es]" similar state regulation. *Id.* at 367.

More recently, in *Oregon v. Mitchell*, this Court held that Congress could properly exercise its Article I, Section 4 powers to compel the States to lower the minimum voting age for federal elections from 21 to 18 and to prohibit States from using durational residency requirements to disqualify voters for presidential and vice-presidential elections. 400 U.S. 112, 117-18 (1970). Again, the

Court affirmed Congress' power to regulate federal elections by imposing duties on the States, to be implemented by state officers. At the same time, this Court also prescribed the limitations of Congress' Section 4 powers in holding that Congress cannot regulate state and local elections. *Id.* at 118.

When, only a few months ago, this Court reviewed the allocation of authority between Congress and the States as to the regulation of federal elections pursuant to Article I, Section 4, it reached the same conclusion that it always has. *U.S. Term Limits, Inc. v. Thornton*, 514 U.S. ___, 115 S.Ct. 1842 (1995). Every member of this Court reasserted there that it is Congress, not the States, that has the ultimate authority to "make or alter" all such regulations. *Id.*, 115 S.Ct. at 1857-58 (majority), 1873 (Kennedy, J., concurring), 1883-84 (Thomas, J., dissenting). The majority recognized once more that Article I, Section 4 gives Congress the last word on all matters relating to the conduct of federal elections. *Id.* at 1869 (quoting *Smiley v. Holm*, 285 U.S. at 366-67 ("[T]he Congress may supplement these state regulations or may substitute its own")). As further explained by Justice Kennedy in his concurring opinion:

The political identity of the entire people of the Union is reinforced by the proposition which I take to be beyond dispute, that, though limited as to its objects, the National Government is and must be controlled by the people without collateral interference by the States.

Id. at 1873.

The dissenting opinion by Justice Thomas similarly stressed that Article I, Section 4 "giv[es] Congress the power to **override** state regulations of '[t]he Times, Places and Manner of holding [congressional] Elections.'" *Id.* at 1898 (emphasis and first bracket added). According to Justice Thomas, Article I, Section 4 "does not delegate

any authority to the States," but "simply imposes a duty upon them." *Id.* at 1883. In explaining the reasons why Congress was given authority over the States in this area, Justice Thomas observed:

The Framers did trust Congress more than the States when it came to preserving the Federal Government's own existence; to advance this interest, they had to give Congress the capacity to prescribe both the date and the mechanics of congressional elections.

Id. at 1898.

In sum, Congress' supervisory authority over the States in the area of federal elections is set forth in the Constitution and has been expressly reaffirmed each time this Court has had occasion to comment upon it. *See, e.g., Mitchell*, 400 U.S. at 124-25 ("ultimate supervisory power" and "final authority" over federal elections); *Gradwell*, 243 U.S. at 482 (extent of Section 4 power "has been settled by repeated decisions of this court"); *Smiley*, 285 U.S. at 367 ("broad authority"); *Siebold*, 100 U.S. at 386 (Congress' power "supervisory and paramount"). While Congress traditionally has chosen to defer to the states, *see Gradwell*, 243 U.S. at 485 (policy for great part of "our constitutional life" to leave conduct of elections to state); *Siebold*, 100 U.S. at 388 (Congress "has been content to leave them as prescribed by state laws"), its ability to exercise its Section 4 powers remains, without condition or qualification.

Section 4 states without qualification that the state legislatures shall prescribe regulations for the conduct of elections for Representatives and, **equally without qualification**, that Congress may make or alter such regulations. **There is nothing to indicate any limitation whatsoever** on this grant of plenary initial and supervisory power.

Wesberry v. Sanders, 376 U.S. 1, 29-30 (1964) (Harlan, J., dissenting) (emphasis added).¹¹

2. The plain language of Article I, Section 4 expressly authorizes Congress' enactment of the NVRA.

The unbroken line of Supreme Court authority reviewed above is firmly supported by the plain language of Article I, Section 4:

The Times, Places and Manner of holding Elections for Senators and Representatives, shall be prescribed in each State by the Legislature thereof; but the Congress may at any time by Law make or alter such Regulations, except as to the Places of chusing Senators.

U.S. Const. Art. I, § 4.

Focusing closely on this text, the Court has stated that Congress could certainly enact a "complete code" of federal elections if it wanted to, including detailed provisions for voter registration:

¹¹ In many of the cases cited above, the Supreme Court held that the breadth of Congress' authority to regulate federal elections extended even to penal provisions designed to protect the integrity of the federal electoral process. See, e.g., *United States v. Classic*, 313 U.S. at 320 (two criminal code provisions were regulations of "manner of holding elections"); *United States v. Mosley*, 238 U.S. 383, 385-86 (1915) (upholding statute making it an offense to "conspire to injure, oppress, threaten, or intimidate any citizen in the free exercise or enjoyment of any right or privilege secured to him by the Constitution"); *Ex Parte Yarbrough*, 110 U.S. 651, 654-55 (1883) (upholding constitutionality of federal criminal statute banning use of force, intimidation or threats to prevent eligible voter from supporting a candidate for federal office); *Siebold*, 100 U.S. at 381-82 (listing criminal provisions of Enforcement Act).

It cannot be doubted that these comprehensive words embrace authority to provide a complete code for congressional elections, not only as to times and places, but in relation to notices, registration, supervision of voting, protection of voters, prevention of fraud and corrupt practices, counting of votes, duties of inspectors and canvassers, and making and publication of election returns; in short, to enact the numerous requirements as to procedure and safeguards which experience shows are necessary in order to enforce the fundamental right involved.

Smiley v. Holm, 285 U.S. at 366 (emphases added); see also *United States v. Gradwell*, 243 U.S. at 483 ("process of the elections of Congressmen [includes] the registration of voters to the final certifying of the results, and . . . the control thus established over such elections was comprehensive and complete").

As Justice Black observed in *Oregon v. Mitchell*: "Any doubt about the powers of Congress to regulate congressional elections . . . should be dispelled by the opinion of this Court in *Smiley v. Holm*." 400 U.S. at 122. The specific clause allowing Congress to "at any time by Law make or alter such Regulations," authorizes Congress to do anything the state legislatures could do and grants Congress "a general supervisory power over the whole subject." *Smiley*, 285 U.S. at 367 (quoting *Siebold*, 100 U.S. at 387); see also *Mitchell*, 400 U.S. at 123 ("Constitution allotted to the States the power to make laws regarding national elections, but provided that if Congress became dissatisfied with the state laws, Congress could alter them"). That Congress may not only "make" but may also "alter" regulations underscores its power to impose duties on the States. The system for conducting federal elections is to be constructed, in the first instance, by the States. Yet the Constitution's text clearly contemplates congressional

modification of the States' systems, hence control over their officers.

On the single subject over which the Framers intended to limit congressional authority – over the "Place of chusing Senators" – they did so expressly. The conspicuous absence of any other qualification leaves no doubt as to Article I, Section 4's broad scope. Any other construction, such as that promoted by Petitioners, would make nonsensical the plain meaning of the words "make" and "alter."

It should therefore come as no surprise that every federal judge who has considered the issue of the NVRA's constitutionality – panels of the Seventh and Ninth Circuits, and district courts in California, Illinois, Michigan, Kansas, South Carolina, Virginia, and Pennsylvania¹² – has reached the same conclusion. Each has rejected out of hand the precise claims offered here by Petitioners and has upheld the NVRA.

The opinion by Chief Judge Posner for the Seventh Circuit leaves no doubt that, under the plain language of Article I, Section 4, Congress has the power to direct the States to hold federal elections as it dictates:

¹² The Seventh Circuit panel consisted of Judges Posner, Easterbrook and Kanne, *ACORN v. Edgar*, 56 F.3d 791, and the district judge in Illinois was Judge Shadur. 880 F. Supp. 1215. The Ninth Circuit panel consisted of Judges Sneed, Kleinfeld and Goodwin, *Voting Rights Coalition v. Wilson*, 60 F.3d 1411, and the district judge in California was Judge Ware. 878 F. Supp. 1324. The district judge in Michigan was Judge Hillman, *ACORN v. Miller*, Nos. 4:95-CV-45, 1:95-CV-184, 1:95-CV-386; in Kansas, Judge Vratil, *League of Women Voters v. Graves*, Case No. 93-2350-KHV; in South Carolina, Judge Perry, *Condon v. Reno*, Civ. Action No. 3:95-192-0; in Virginia, Judge Williams, *Commonwealth of Virginia v. United States*, Civ. Action No. 3:95CV357 (RLW); and in Pennsylvania, Judge Buckwalter. *ACORN v. Ridge*, Civ. Action Nos. 94-7671 & 95-382.

As emphasized in *New York v. United States*, on which the State of Illinois relies so heavily, the provisions of the Constitution that relate to the states mostly tell them not what they must do but what they can or cannot do. Article I section 4 (not discussed in *New York v. United States*) is an exception. The first sentence tells the states that they, not Congress, must regulate the times, places, and manner of holding federal elections, implicitly at their own expense. A state cannot say to Congress, "We are not interested in elections for federal office. If you want to conduct such elections in our state you must do so yourself – establish your own system of registration, hire your own registrars, find your own places for voting." The state is obligated to do these things. *U.S. Term Limits, Inc. v. Thornton*, ___ U.S. ___, 115 S.Ct. 1842, 1845-55, 131 L.Ed.2d 881 (1995). The power conferred as a corollary to the imposition of this duty could be abused, so Article I section 4 goes on to provide that Congress can if it wants step in and either make its own regulations or alter those adopted by the state pursuant to the duty imposed by the first sentence. *Id.* at ___, 115 S.Ct. at 1857-59. Even when there is no abuse, as we have seen, Congress can, as in the law fixing a uniform date for federal elections, regulate federal elections and force the state to bear the expense of the regulation.

ACORN v. Edgar, 56 F.3d at 794 (emphasis in original).

Judge Posner also easily dispensed with the claim that the NVRA lies outside the bounds of Article I, Section 4 because it requires state officers to assist in voter registration:

[T]he state itself concedes, as it must in light of the holding of *Ex parte Siebold*, that . . . Congress could have established a separate system of

voter registration for federal elections, manned by federal officers, having all the burdensome features of which Illinois complains. If Congress had done that, however, the burden would fall on the federal fisc alone. That is why the state is happy to make the concession. But Article I section 4 does not authorize Congress only to establish a system of federal voter registration. The first sentence, remember, requires the states to create and operate such a system and the second authorizes Congress to alter the state's system – but it is still the state's system, manned by state officers and hence paid for by the state.

Id. at 795. In view of the plain language of Article I, Section 4, Judge Posner had no trouble concluding that "the Constitution itself is clear enough to enable us to resolve the case." *Id.* at 793.

The Ninth Circuit's opinion, written by Judge Sneed, is in full accord with each of these points. Following the Seventh Circuit, the Ninth Circuit soundly rejected the argument that Congress had exceeded its authority in enacting legislation designed to eliminate obstacles to voter registration. Characterizing the power given to Congress by Article I, Section 4 as "quite broad," Judge Sneed found that the NVRA "fits comfortably within its grasp." *Voting Rights Coalition*, 60 F.3d at 1413-14.

3. The legislative history of Article I, Section 4 permits regulations by both federal and state governments, but makes any federal regulation paramount

The legislative history of Article I, Section 4 provides additional support for this Court's consistent holdings that Congress has been constitutionally afforded the final say in the regulation of federal elections. In fact, Article I, Section 4 was the subject of intense debate at the various

state ratifying conventions of 1787-1789. At that time, elections within the meaning of Section 4 were "those wherein Senators should be chosen by legislatures and Representatives by voters possessing 'the qualifications requisite for electors of the most numerous branch of the state legislature.'" *Newberry v. United States*, 256 U.S. at 249-50 (1920) (quoting U.S. Const. Art I, §§ 2, 3). Thus, many states feared that granting Congress the power to regulate the times, places, and manner of electing Congressmen "might be extended to and embrace the regulation of the election of the members of the state legislatures who were to exercise the power to elect Senators." *Id.* at 268.

On the other hand, proponents of the provision believed that consigning the power to regulate federal elections exclusively with the States would place the existence of the federal government entirely at the mercy of the States. "They could at any moment annihilate it by neglecting to provide for the choice of persons to administer its affairs." *The Federalist* No. 59, at 363 (Alexander Hamilton) (Clinton Rossiter, ed. 1961); see also *The Federalist* No. 60, at 366 (Hamilton) ("an uncontrollable power over the elections to the federal government could not, without hazard, be committed to the State legislatures").

In the end, granting Congress paramount power over federal elections was considered indispensable, and those favoring congressional authority over federal elections prevailed. See J. Story, *Commentaries on the Constitution of the United States* 280-292 (1st ed. 1833) (cited in *Oregon v. Mitchell*, 400 U.S. at 119 n.2). Alexander Hamilton explained that Section 4's "propriety rests upon the evidence of this plain proposition, that every government ought to contain in itself the means of its own preservation." *The Federalist* No. 59, at 362 (emphasis in original).

As evident from his remarks at the Virginia Convention, James Madison held the same view:

It was found impossible to fix the time, place, and manner of election of representatives in the constitution. It was found necessary to leave the regulation of these, in the first place, to the state governments as being best acquainted with the situation of the people, subject to the control of the general government, in order to enable it to produce uniformity and prevent its own dissolution. . . . Were they exclusively under the control of the state governments, the general government might easily be dissolved. . . . The power appears to me satisfactory, and as unlikely to be abused as any part of the Constitution.

Records of the Federal Convention, vol. 3, at 311 (Farland) (quoted in *Gradwell*, 243 U.S. at 484) (emphasis added).¹³

The fears of the provision's opponents were dispelled by restricting congressional authority to the times, places, and manner of elections, and by not giving Congress any authority to deal with the election of the state legislatures, which was a power reserved to the states. *The Federalist No. 60*, at 371 (Hamilton); *Newberry*, 256 U.S.

¹³ Delegates to the Massachusetts Convention also recognized the inherent danger of granting exclusive control to the states. For example, Mr. Cabot warned that "if the state legislatures are suffered to regulate conclusively the elections of the democratic branch, they may . . . finally annihilate that control of the general government, which the people ought always to have." Story, *Commentaries* 26 (quoted in *Oregon v. Mitchell*, 400 U.S. 112, 119 n.2 (1970)). Similarly, Mr. Parsons stated that only by giving the federal government "controlling power" over federal elections could the people's "equal and sacred rights of election" be preserved. *Id.* at 27.

at 269 (White, J., dissenting). Thus, in order to safeguard the continued existence of the federal government and to effectuate uniformity throughout the nation as needed, the Framers quite deliberately placed ultimate control over federal elections in the hands of the federal government. This Court has never permitted any other result.

B. IN VIEW OF THE UNBROKEN LINE OF CASES ESTABLISHING CONGRESS' AUTHORITY OVER FEDERAL ELECTIONS, THIS CASE PRESENTS NO SUBSTANTIAL TENTH AMENDMENT QUESTION

Petitioners also seek review to assert their claim that the NVRA is unconstitutional under the Tenth Amendment. But given that this Court has so clearly and frequently construed Article I, Section 4 to accord Congress paramount authority over the regulation of federal elections, there is nothing "reserved" to the states so as to raise a Tenth Amendment question. Any other result would constitute a radical departure from over a century of settled Tenth Amendment jurisprudence, both as to holdings and methodology of adjudication.

Application of the Tenth Amendment is to be determined by "inquir[ing] whether an Act of Congress is authorized by one of the powers delegated to Congress in Article I of the Constitution." *New York v. United States*, 505 U.S. 144, 155 (1992) (citing *Perez v. United States*, 402 U.S. 146 (1971) and *McCulloch v. Maryland*, 17 U.S. (4 Wheat.) 316 (1819)). "If a power is delegated to Congress in the Constitution, the Tenth Amendment expressly disclaims any reservation of that power to the States. . . ." *New York v. United States*, 505 U.S. at 156.

Because the NVRA was enacted pursuant to a constitutional provision that explicitly grants Congress the

power to regulate the states, it cannot offend the constitutionally-mandated division of authority between the states and the federal government. To assert otherwise, as Petitioners necessarily have been compelled to argue to this Court, would render Article I, Section 4 nugatory: Congress, in fact, would not have the power at all to "make or alter" the States' regulations. Instead, State executives and legislatures would command ultimate authority to dictate how federal elections are conducted and basic tenets of federalism would be flipped on their head.

By their very role in our democratic scheme, federal elections, the existence of which are dependent upon the Constitution, could never have been within the "reserved" powers of the States. The Tenth Amendment simply provides that "powers not delegated to the United States by the Constitution . . . are reserved to the States." Thus, this Court in *Mitchell* held that Congress could not regulate state elections because the "Constitution reserves to the States the power to set voter qualifications in state and local elections." *Mitchell*, 400 U.S. at 125. Yet, as this Court recently observed, "No state can say, that it has reserved, what it never possessed." *U.S. Term Limits, Inc.*, 115 S.Ct. at 1854 (quoting Justice Story).

Because the ultimate authority to regulate federal elections was "never possessed" by the states, the Tenth Amendment is simply irrelevant here:

For the election of Senators and Representatives in Congress is a Federal function; whatever the states do in the matter they do under authority derived from the Constitution of the United States. The reservation contained in the 10th Amendment cannot properly operate upon this subject in favor of the state governments; they

could not reserve power over a matter that had no previous existence.

Newberry, 256 U.S. at 281 (White, J., dissenting).

For these reasons, all of the lower courts examining the NVRA have concluded that the holding of *New York v. United States* has no relevance to the question of the NVRA's constitutionality. While under the Commerce Clause, Congress may regulate private activity that affects interstate commerce, its ability to regulate "States as States" is very closely circumscribed. *Garcia v. San Antonio Met. Transit Auth.*, 469 U.S. 528, 554 (1985); *EEOC v. Wyoming*, 460 U.S. 226, 237 (1983); *Hodel v. Virginia Surface Mining & Reclamation Ass'n*, 452 U.S. 264, 287-88 (1981).

A simple comparison of the text of the Commerce Clause with that of Article I, Section 4 easily illustrates the substantively different ranges of authority conferred. The Commerce Clause authorizes Congress "[t]o regulate Commerce with foreign Nations, and among the several States." U.S. Const. Art. I, § 8, cl. 3. It is completely silent on the issue of congressional regulation of States. In contrast, Section 4 directly confronts the issue, stating that: "[t]he Times, Places and Manner of holding Elections for Senators and Representatives, shall be prescribed in each State by the Legislature thereof; but the Congress may at any time by Law make or alter such Regulations. . . ." U.S. Const. Art. I, § 4, cl. 1 (emphases added).¹⁴ This provision clearly and specifically

¹⁴ Rarely does our federalist system "require[] or give[] room for conjoint action between the state and national sovereignties." *Siebold*, 100 U.S. at 392. For the most part, the operations of the federal government are to be "conducted separately" from those of the states. *Id.* With respect to those "very few subjects," *id.*, other than Article I, Section 4, where the Constitution contemplates joint action and gives Congress the final say, it does so in explicit terms:

authorizes Congress to regulate the states in the administration and conduct of federal elections. It leaves room for state participation, but not for state domination. *See, e.g., Puerto Rico v. Branstad*, 483 U.S. 219, 228 (1987) (discussing Fugitives clause: "Because the duty is directly imposed upon the States by the Constitution itself, there can be no need to weigh the performance of the federal obligation against the powers reserved to the States under the Tenth Amendment.").

Petitioners' attempt to rely on *United States v. Lopez*, 514 U.S. ___, 131 L.Ed.2d 626 (1995), is likewise misplaced. *Lopez*, which holds that Congress exceeded its authority under the Commerce Clause in enacting the Gun-Free School Zones Act, crystallizes the fatal flaw in the State's argument. As stated in the *Lopez* passage quoted in the Petition for Certiorari, "in areas such as

Article I, Section 8, clause 16: "To provide for organizing, arming, and disciplining, the Militia, . . . **reserving to the States respectively**, the Appointment of the Officers, and the Authority of training the Militia according to the discipline prescribed by Congress."

Article I, Section 10, clause 2: "No State shall, **without the Consent of the Congress**, lay any Imposts or Duties on Imports or Exports, except what may be absolutely necessary for executing its inspection Laws: and the net Produce of all Duties and Imposts, laid by any State on Imports or Exports, shall be for the Use of the Treasury of the United States; and **all such Laws shall be subject to the Revision and Controul of the Congress.**"

Article II, Section 1, clause 4: "Congress may **determine** the Time of chusing the [States'] Electors, and the Day on which they shall give their Votes; which Day shall be the same throughout the United States."

criminal law enforcement or education . . . States historically have been sovereign." *Id.* at 641 (quoted in *Pet.* at 25). The regulation of federal elections is manifestly different. Indeed, if there is any area in which the States historically have not been sovereign, it is in the regulation of federal elections. Over this subject, as Chief Judge Posner stated in *ACORN*, "Congress was given the whip hand." 56 F.3d at 794. The Constitution confers upon Congress not only the power to regulate federal elections, but also the authority to "force the state to bear the expense of the regulation." *Id.*; see also *Voting Rights Coalition*, 60 F.3d at 1415. *Lopez's* emphasis on the states' historical authority to regulate education thus magnifies the defect in the State's attempt to apply Commerce Clause reasoning in the territory governed by Article I, Section 4.

Although Petitioners attempt to make much of the fact that the NVRA involves state officers whose traditional responsibilities are unrelated to elections, this fact is of no constitutional import – particularly since the officers involved already perform functions comparable to those required by the NVRA. "In no matter should [courts] pay more deference to the opinion of Congress than in its choice of instrumentalities to perform a function that is within its power." *National Mutual Insurance Co. v. Tidewater Transfer Co.*, 337 U.S. 582, 603 (1949) (opinion of Jackson, J.). As Chief Justice Marshall stated with regard to Congress' power under the "necessary and proper" clause: "Let the end be legitimate, let it be within the scope of the constitution, and all means by which are appropriate, which are plainly adapted to that end, which are not prohibited, but consist with the letter and spirit of constitution, are constitutional." *McCulloch v. Maryland*, 17 U.S. (4 Wheat.) 316, 421 (1819).

Nor does the NVRA represent the first time that Congress has imposed duties on state officers other than election officials. Congress previously has exercised its Section 4 powers in very specific terms, for example, to tell state legislatures "to meet in joint convention, and

fixing the day when this should be done, and requiring them so to meet on every day thereafter and vote for a senator until one was elected." *Ex Parte Yarbrough*, 110 U.S. 651, 661 (1884). The NVRA, which contemplates the participation of state officers who already perform the ministerial duty of compiling lists, imposes a much less onerous burden on the States.

Petitioners' effort to characterize the lack of full federal funding or reliance upon state officials to carry out some of the requirements of the NVRA is equally insubstantial as a Tenth Amendment issue. There is, of course, nothing new about the use of state resources and personnel to run federal elections. *Voting Rights Coalition*, 60 F.3d at 1415 (exercise of Congress' Section 4 power "intended to be borne by the states without compensation" and no authorities "have suggested, even remotely, the necessity of the United States bearing the burden of any alteration it imposed."). Proper funding for any program is surely a meaningful practical consideration in implementation. But while the federal government does in fact assume a portion of the costs involved in implementing the NVRA, and Petitioners' assertions as to California's costs and burdens are much exaggerated, which entities should bear the expenses of a program enacted pursuant to congressional authority is a legislative policy decision, not a matter of constitutional dimension for the courts. See *Garcia*, 469 U.S. at 555 n.21 (presence or absence of federal funding not a Tenth Amendment issue); *Hodel*, 452 U.S. at 292 n.33 (statute's impact on state economy "insufficient to establish a violation of the Tenth Amendment").¹⁵

¹⁵ As explained in the Statement of Facts, *supra*, we thoroughly disagree with the State's estimate of the burdens associated with the NVRA and with its arguments as to their relevance. In any event, these subjects are inappropriate for

Accordingly, the Seventh Circuit found no merit whatsoever in the state's attempt to "grope[] for some extratextual limitation on the power granted by Article I section 4" by invoking the Tenth Amendment:

Illinois advances the related notion that to make a state administer federal elections fatally compromises state sovereignty. That particular "fatal compromise," however, is built into the Constitution, precisely in Article I section 4, the first sentence of which places the burden of administering federal elections on the states.

ACORN, 56 F.3d at 796. While Congress may, if it wishes, reimburse the states for the costs of conducting federal elections, there is no constitutional requirement that it do so.

Because the Constitution has already struck the proper balance between federal and state interests in this area, further balancing is unnecessary. When drafting the Constitution, the Framers evaluated the merits of granting authority over federal elections exclusively to the states or exclusively to the federal government. In the end, they created a federalist system that conferred plenary authority upon both, but gave Congress ultimate supervisory power. It was "'not a controversy between equals.'" *United States v. Manning*, 215 F. Supp. 272, 277 (W.D. La. 1963) (quoting Justice Holmes). Thus, "[t]here is no such conflict between them as to prevent their forming

resolution through a facial challenge. As both the Seventh Circuit and the Ninth Circuit expressly stated in their opinions, implementation of the NVRA should be accomplished with an "adequate sensitivity to the principle of federalism." *Voting Rights Coalition*, 60 F.3d at 1416; *ACORN*, 56 F.3d at 798. If the implementation of the NVRA violates this principle, an as-applied challenge would of course be the appropriate means by which to raise such a claim. The burdens imposed on the state, even if relevant, simply cannot be considered given the present posture of this case.

a harmonious system perfectly capable of being administered and carried out as such." *Siebold*, 100 U.S. at 386. In the face of such emphatic and unambiguous precedent, there exist no suitable grounds for review by this Court.

CONCLUSION

Questions relating to the scope of congressional power often implicate novel and important constitutional issues that should be addressed. This case does not present such an issue. This case involves a clear constitutional mandate that has been consistently affirmed by this Court. Time and time again, when asked to consider Article I, Section 4, this Court has reiterated Congress' "paramount" authority to regulate federal elections, a power that includes the registration of voters. There is no reason for this Court to say again what it already has said clearly and forcefully. Accordingly, the Court should deny the State's Petition.

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Respectfully submitted,

ROBERT RUBIN

Counsel of Record
Lawyers' Committee for
Civil Rights of the
San Francisco Bay Area
301 Mission Street, Suite 400
San Francisco, CA 94105
(415) 543-9444

MARK D. ROSENBAUM
ACLU of Southern California
1616 Beverly Blvd.
Los Angeles, CA 90026
(213) 977-9500

